

		612-615.) Courts have broad discretion to accept a late complaint amendment without a noticed motion for relief, or to strike it as untimely. (<i>Bai v. Yip</i> (2024) 107 Cal.App.5th 188, 197; see also <i>Harlan, supra</i>, 132 Cal.App.4th at 873 [“While the court had discretion to require a noticed motion before permitting Harlan to file the second amended complaint late, we think it also had discretion under these circumstances to accept the filing without a noticed motion.”].) Plaintiffs’ notice of motion alternatively seeks leave to amend under Code Civ. Proc. § 473(a). The trial court “in furtherance of justice” may allow amendment of a pleading. (Code Civ. Proc., § 473, subd. (a)(1).) There is a strong policy in favor of liberally granting leave to amend. (<i>Mesler v. Bragg Management Co.</i> (1985) 39 Cal.3d 290, 296.) Typically, leave should be granted unless it would prejudice the defendants. (<i>Ibid.</i>) Defendants have not shown that they will suffer any prejudice from allowing Plaintiffs leave to file the SAC. Plaintiff is ordered to file the Second Amended Complaint attached as Exhibit “A” to the Russell Declaration within 10 days of this hearing. Plaintiffs shall give notice of this ruling.
11	Cullen vs. Pathway Healthcare Services, LLC	TENTATIVE RULING: Attorney Mitchell R. Garrett’s Application to Appear <i>Pro Hac Vice</i> for Defendants Andrew Turner, Jennifer Miller and Defendant/Cross-Complainant Pathway Healthcare Services, LLC is GRANTED. The Court finds attorney Mr. Garrett has complied with all the requirements of rule 9.40 of the California Rules of Court. Moving party shall give notice.
12	Hummer vs. Niguel Shores Community Association	TENTATIVE RULING: <u>Motion to Be Relieved as Counsel of Record</u> Attorney Austin Nichter’s unopposed motion to be relieved as counsel of record for Plaintiff Judith Hummer is GRANTED.

		The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.) Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by Moving Counsel, Attorney Austin Nichter, and finds that Moving Counsel have complied with the requirements of Rule 3.1362. The court’s order shall become effective upon the filing of a Proof of Service showing service of the signed order on Plaintiff Judith Hummer. Moving Counsel to give notice.
13	Towfik vs. AMN Services LLC	TENTATIVE RULING: <u>Motion to Enforce Order</u> Plaintiff Orit Towfik moves to enforce this Court’s October 8, 2025, order and compel Defendant Farbod Esmailian (“Esmailian”) to participate in the pending JAMS arbitration. For the following reasons, the motion is GRANTED. Esmailian is ORDERED to rescind his Notice of Withdrawal from the JAMS arbitration within 15 days and participate in the arbitration. <u>Procedural History</u> On July 11, 2025, Defendant AMN Services LLC (“AMN”) filed its motion to compel arbitration. It served that motion on counsel for Plaintiff and counsel for Defendant The Regents of the University of California (“The Regents”). (ROA 26.) Esmailian was not served with that motion. On August 6, 2025, Defendant The Regents filed a motion for joinder in AMN’s motion to compel arbitration. (ROA 43.) The Regents’ motion included its own memorandum of points and authorities setting forth its contentions that arbitration should be compelled. (Ibid.) The Regents served Esmailian with that joinder. On August 27, 2025, the parties – including counsel for Esmailian – submitted a stipulation to advance the hearing on The Regents’ joinder to be heard concurrently with AMN’s motion to compel